

25LBCV02832 25LBCV02832

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C09%2F24%2F2026

Source SHA-256: a3e71bee0460b7963fcc7084e4b3e845172830324dfd2bfd12d39c8dab36ca40

Case Number: 25LBCV02832 Hearing Date: September 24, 2026 Dept: S28

BACKGROUND

Plaintiffs

entered into a warranty contract with Defendant American Honda Motor Company ("Honda") on September 7, 2021.

Plaintiffs allege breach of express and implied warranties and statutory violations under the Song Beverly Act.

On October 9, 2025, Plaintiffs filed a complaint against Honda alleging (1) violation of Civil Code section 1793.2 subdivision (d); (2) violation of Civil Code section 1793.2 subdivision (b); (3) violation of Civil Code section 1793.2 subdivision (a)(3); (4) breach of implied warranty; and (5) fraudulent inducement.

On June 29, 2026, Defendant Honda filed three motions to compel further responses to Requests for Admission (Set One), Special Interrogatories (Set One) and Form Interrogatories (Set One). On September 3, 2026, Plaintiffs filed opposition to the motions to compel further responses to the Special Interrogatories (Set One) and Form Interrogatories (Set One). On September 18, 2026, Plaintiffs filed an opposition to the motion to compel further responses to the Requests for Admission (Set One).

On July 2, 2026, Defendant Honda filed a motion to compel further responses to Requests for Production (Set One). On September 13, 2026, Plaintiffs filed an opposition to the motion to compel further responses to Requests for Production (Set One).

On September 18, 2026, Plaintiffs' counsel filed a declaration per Code of Civil Procedure section 473 subdivision (b) in

support of the late-filed oppositions.

As of September 21, 2026, no replies have been filed.

DISCUSSION

A. Applicable Law

Code
of Civil Procedure section 2030.300

(a)

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular
interrogatory is evasive or incomplete.

(2) An exercise of the option to
produce documents under Section 2030.230 is unwarranted or the required
specification of those documents is inadequate.

(3) An objection to an interrogatory
is without merit or too general.

(b)(1)

A motion under subdivision (a) shall be accompanied by a meet and confer
declaration under Section 2016.040.

(2)

In lieu of a separate statement required under the California Rules of Court,
the court may allow the moving party to submit a concise outline of the
discovery request and each response in dispute.

(c)

Unless notice of this motion is given within 45 days of the service of the
verified response, or any supplemental verified response, or on or before any
specific later date to which the propounding party and the responding party

have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.

(d)

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(e)

If a party then fails to obey an order compelling further response to interrogatories, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).

Code

of Civil Procedure section 2031.310

(a)

On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.

(b)

A motion under subdivision (a) shall comply with each of the following:

(1) The motion shall set forth

specific facts showing good cause justifying the discovery sought by the demand.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(3) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.

(c)
Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.

...

(h) Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Code
of Civil Procedure section 2033.290

(a)
On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

(1) An answer to a particular request is evasive or incomplete.

(2) An objection to a particular request is without merit or too general.

(b)(1)

A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.

(2) In lieu of a separate statement

required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.

(c)

Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.

(d)

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(e)

If a party then fails to obey an order compelling further response to requests for admission, the court may order that the matters involved in the requests be deemed admitted. In lieu of, or in addition to, this order, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).

If

a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories and RFAs. (Coy v. Sup.Ct. (Wolcher) (1962) 58 Cal.2d 210, 220–221; Fairmont Ins. Co. v. Sup.Ct. (Stendell) (2000) 22 Cal.4th 245, 255.)

Where

a party is seeking to compel further responses to requests for document production, the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (Code Civ. Proc., §2031.310, subd. (b)(1); Kirkland v. Supr. Ct. (2002) 95 Cal.App.4th 92,

98 (“Once good cause was shown, the burden shifted to Kirkland to justify his objection”); Glenfed Develop. Corp. v. Supr. Ct. (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established by the moving party, the burden then shifts to the responding party to justify any objections made to document disclosure. (Hartbrodt v. Burke (1996, 2nd Dist.) 42 Cal.App.4th 168, 172-174.)

B. Plaintiffs’ untimely oppositions

Plaintiffs’

counsel concedes that their opposition to the motion to compel further responses to RFAs was untimely. (473(b)

Abdo Dec., ¶2.) Plaintiffs’ counsel

attests that this was due to a calendaring error. (Id. at ¶¶4-5.) The Court may disregard Plaintiffs’ late-filed opposition in its discretion pursuant to California Rules of Court

3.1300 subdivision (d). The Court considers

Plaintiffs’ late-filed opposition in the absence of any prejudice.

C. Defendant’s Motions to Compel Further

Responses are moot

Defendant served Plaintiffs with

Requests for Admission (Set One), Special Interrogatories (Set One), Form

Interrogatories (Set One) and Requests for Production (Set One) on April 9,

2026. (Mooradian Dec. ISO MTCF to RFPs, ¶3.)[1] Plaintiffs served timely responses that

consisted entirely of objections. (Id.

at ¶4.)

Defendant sent Plaintiffs a meet and

confer letter on May 21, 2026. (Id.

at ¶5.) As of June 29, 2026 and July 2,

2026, Plaintiffs did not respond to the meet and confer attempt.

In opposition, Plaintiffs maintain

the motions are moot. Plaintiffs served

further responses on July 20, 2026 and verifications on August 11, 2026. (Oppositions to MTCF to RFAs and RFPs, Abdo

Dec., ¶3; Oppositions to MTCG Special Interrogatories and Form Interrogatories,

Serri Dec., ¶3.) Plaintiffs attach their

supplemental responses to the RFPs to their opposition to the motion to compel

further responses to the RFPs, but they do not provide the Court with their

supplemental responses to the form and special interrogatories or the RFAs. (Opposition to MTCF to RFPs, Abdo Dec., ¶5; Opposition to MTCF to RFAs, Abdo Dec.; Oppositions to MTCF Special Interrogatories and Form Interrogatories, Serri Dec.

As

discussed in *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, the Court has several options if untimely responses are served once a motion to compel is filed. “The trial court might compel responses without objection if it finds no legally valid responses have been provided to one or more interrogatories; it might deny the motion to compel responses as essentially unnecessary, in whole or in part, and just impose sanctions; it might treat the motion as one under section 2030.300 and either determine that further answers are required, or order the propounding party to “meet and confer” (§ 2030.300, subd. (b)) and file a separate statement (Cal. Rules of Court, rule 3.1020(a)(2), (c)); or it might take the motion off calendar, thereby requiring the propounding party to file a motion under section 2030.300 [statute governing motions to compel further responses to interrogatories].” (*Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 409.)

In

light of the further responses served on July 20, 2026 and verified on August 11, 2026, the substantive request that Plaintiffs be ordered to serve further responses is moot. The motions to compel further responses are denied as moot.

C. Defendant’s meet and confer efforts were insufficient

Plaintiffs

also argue the meet and confer attempts were insufficient. “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., §2016.040, subd. (a).) Defendant sent a single meet and confer letter on May 21, 2026 and did not follow up prior to filing the motions to compel on June 29, 2026 and July 2, 2026. Defendant’s motions are properly denied on this alternative ground.

D. Sanctions are denied

Defendant's

requests for sanctions, however, are still at issue. Plaintiffs did not serve further responses until after the motions were filed.

However, as Plaintiffs' point out Defendant did not meet and confer as required by section 2016.040. In fact, the failure to meet and confer as required is grounds to impose sanctions on Defendant. (Code of Civ. Proc., §2023.020.) For this reason, Defendant's request for sanctions is denied because Plaintiffs acted with substantial justification.

CONCLUSION

Defendant's Motions to Compel

Further Responses to (1) Requests for Admission (Set One), (2) Special Interrogatories (Set One), (3) Form Interrogatories (Set One) and (4) Requests for Production (Set One) are denied as moot.

Defendant's requests for sanction are denied. Plaintiffs acted with substantial justification in light of Defendant's failure to adequately meet and confer.

[1] Moordian's Declaration is

essentially the same in support of each of the four motions and references to the declaration in support of the MTCF to RFPs apply to the other motions as well.